

presented a dangerous condition of public property. Further, the alleged concealed trap was not created by City's design of the roadway, but by truckers' illegal use of the roadway despite posted signs that such parking is illegal (for obvious reasons).

Accordingly, the court sustains the demurrer, without leave to amend, as it is clear that Plaintiff has been afforded the opportunity to present facts that the roadway itself was in an actionable dangerous condition, but has failed to do so.

11th Cause of Action for Wrongful Death: A cause of action for wrongful death is a statutory claim that compensates specified heirs of the decedent for losses suffered as a result of a decedent's death. (CCP §§ 377.60-377.62; *LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 872.) The elements of a wrongful death claim are: (1) a tort (negligence or other wrongful act); (2) resulting death of another person; and (3) damages, consisting of the pecuniary loss suffered by the heirs. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) Facts in support of each of the requirements of a statute upon which a cause of action is based must be pleaded. (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) As Plaintiff Quiroz has failed to allege a proper tort claim against City it likewise has failed to allege facts sufficient to state a claim for wrongful death against City. **Accordingly, the court sustains, without leave to amend, as to City of Perris.**

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504289	KAMBLE VS MIRA LOMA ASSOCIATES	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

The opposition to this motion is untimely and was due filed and served at least 9 court days prior to the 9/16/2026 hearing (CCP 1005). Accordingly, the motion to set aside is unopposed and is granted in all respects.

Defendants are ordered to file the attached Demurrer within 10 days of this order. The Court sets the matter for a Case Management Conference on 11/18/2026 at 8:30 a.m. in Dept. 6.

Moving party is to give notice of ruling and of the CMC.